

Court No. - 32

Case :- WRIT - C No. - 39812 of 2019

Petitioner :- Amit

**Respondent :- U.P. Power Corporation Ltd. And
Another**

**Counsel for Petitioner :- Salilendu Kumar
Upadhyay**

**Counsel for Respondent :- Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of mandamus directing the respondents to restore the electricity supply of the house of petitioner.

(ii) Issue writ, order or direction in the nature of mandamus directing the respondents to revise the electricity bill dated 15.06.2017.

(iii) Issue a writ, order or direction in the nature of mandamus directing the respondents to decide the representation of the petitioner dated 5.11.2019."

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority/Executive Engineer for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within three weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally **disposed of**.

Order Date :- 5.12.2019

Junaid